



DECISION

Complaint No. :

POS/2345/2022/KC

Name and address
of the complainant :

Mr. Waqar Alam,
R/o. House 5-E, 14/22, Nazimabad No. 05, Karachi

Name of the Agency
complained against :

Sindh Building Control Authority (SBCA)

Name & Designation of
Investigating Officer :

Mr. Iqbal Nafees Khan
Regional Director, Karachi Central.

Subject :-

**ILLEGAL CONSTRUCTION ON PLOT NO. 5-E, 14/23,
NAZIMABAD NO. 05, KARACHI**

COMPLAINT

Mr. Waqar Alam filed a complaint on 26.04.2022 regarding illegal construction on Plot No. 05-E, House No. 14/23, adjacent to his residence (House No. 14/22). Despite approaching the concerned departments, no remedial action was taken. Therefore, he sought the intervention of this Institution.

PROCEEDINGS

2. The complaint was examined and admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended in 2020), by condoning the delay and upon submission of Affidavit on Form- "A" by the complainant, the matter was referred to the Agency.
3. In response, the Deputy Director, Sindh Building Control Authority (SBCA), District Central, Karachi, vide letter dated 07.07.2022, reported that upon inspection, a Ground plus four (G+4) storey structure was found constructed on the subject plot. He further stated that demolition action was carried out on 21.06.2022, whereby the fourth floor was completely demolished. Photographs were furnished in support of the report.
4. The Agency's report was forwarded to the complainant vide this office letter dated 27.07.2022 for filing of rejoinder. Despite issuance of four reminders, no response was received. Subsequently, the fifth reminder dated 06.07.2023 was delivered through Dispatch Rider, whereupon the complainant stated that the matter was sub judice before the Sindh High Court and requested closure of his complaint before this Institution (POS).

DECISION

5. In view of the foregoing, the case is closed and consigned to record on the grounds that the matter is sub judice before a court of law.

Given under my hand and seal of this office.



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz (PAS)
OMBUDSMAN SINDH
Karachi, the 13th January, 2026